PRINCIPLE I: AI-ASSISTED LANGUAGE EDUCATION SHOULD BE SAFE

Guideline 2

Safeguard the data security and digital safety of all participants

About this guideline

Education providers have an ethical responsibility, or duty of care, to ensure the privacy and data security of people involved in language teaching and learning. Existing legislation, some of which predates the widespread adoption of artificial intelligence, generally provides robust frameworks, but cannot fully anticipate the pace and complexity of technological development. This means that legal compliance, though necessary, does not always provide sufficient protection for users in language education, where activities routinely involve the sharing of personal narratives, voice recordings and written samples, and where learners are often minors or members of vulnerable populations whose data warrants heightened protection.

Artificial intelligence applications function by **collecting learner data**, such as voice recordings or writing samples, and reacting to such input. For example, when a learner engages with a conversational agent for speaking practice, conversations about personal experiences may be retained; similarly, texts on controversial topics, produced for developing writing skills, might be retained by AI-supported feedback applications. Applications might also harvest data beyond what is strictly required for educational purposes, such as personal identifiers (cookies), device information, or engagement and behavioural metrics (Liu & Khalil, 2023). Such practices are generally legal, assuming informed consent (see Guideline 1). However, digital tools need to be vetted to ensure that their data collection practices align with pedagogical needs and that issues of informed consent are appropriately addressed and documented.

Educators should also be aware that user content (e.g., prompts, voice samples) and **metadata** might be retained in ways that are hard (or, at times, impossible) to erase. This can be problematic, as obsolete or poorly managed data storage systems may pose privacy risks. Even anonymised data might be compromised through accidental exposure or used for profiling (e.g., revealing association with minoritised linguistic groups, learning differences, or non-academic attributes like sexual, religious and political affiliations). Especially when working with vulnerable individuals, such as underage learners, migrants, refugees and asylum seekers, AI use is best limited to trusted applications, and users need to be educated about data security best practices, such as minimising the disclosure of personally identifiable information in prompts and uploads, avoiding the sharing of identifiable work and reporting suspected breaches promptly through established institutional channels.

Another issue that warrants careful consideration is the possibility of **data mining**, an issue not restricted to AI applications, but amplified in them. Such practices become problematic when data generated in educational settings are repurposed for unauthorised machine training, commercial or even surveillance purposes. Data mining can also be an issue when an application uses user-provided data (and possibly metadata) for training the AI model or learner **profiling**. While such profiles can help personalise learning, they also raise questions of consent and representation. They can also exacerbate linguistic bias, and (where AI-assisted assessment is allowed) they might result in flawed assessment outcomes. Educators need to monitor how learners are guided through content, and they should use their professional judgment to adapt or override AI suggestions.

Did you know?

Some relevant legal documents that regulate data privacy include the following:

- The European Union AI Act (European Parliament & Council of the European Union, 2024) [EU]
- The General Data Protection Regulation, or GDPR (European Parliament & Council of the European Union, 2016) [EU]
- The Family Educational Rights and Privacy Act, or FERPA (U.S. Department of Education, 1974) [USA]
- Personal Information Protection and Electronic Documents Act, or PIPEDA (Government of Canada, 2000) [Canada]

Did you know?

In some countries, such as Germany, teachers can create safe learning spaces in FOBIZZ (http://fobizz.com) without needing to create personal accounts or share identifiable data. Such platforms are designed with education in mind and comply with strict data protection regulations.

Is there a similar alternative in your context?

Did you know?

Some AI platforms allow individual users to opt out of having their conversation used for model training through account level data control settings. However, this option must be activated manually, may not apply retroactively, and does not necessarily prevent temporary data retention for safety monitoring.

To illustrate, if you use ChatGPT, you can opt out of model training. Share these steps with students:

1. Go to ChatGPT.com and log in.
2. Click your **name or email** in the bottom-left corner to open the menu. Select **Settings**.
3. In the Settings menu, click **Data Controls**.
4. Look for the setting labelled **Improve the model for everyone** (or similar wording).
5. **Toggle it off**. This prevents your data from being used to train and improve OpenAI models.

You can often find similar opt-out settings in other AI tools, though the labels and the scope of opt-out vary by platform.

A final thought

For now, at least, locally hosted or privacy-preserving AI systems are not always as practical, powerful, or user-friendly as many commercial cloud-based platforms. However, they do point to an important future direction for education: in principle, AI systems that run on a local device, an institutional server, or another controlled environment could allow teachers and institutions to make use of AI while reducing the risks associated with transferring learner data to external companies, governments or third-party platforms.

References

European Parliament and Council of the European Union (2016), *Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (General Data Protection Regulation)*, available at: https://eur-lex.europa.eu/eli/reg/2016/679/oj, accessed 12 October 2026.

European Parliament and Council of the European Union (2024), *Regulation (EU) 2024/1689 of the European Parliament and of the Council of 13 June 2024 laying down harmonised rules on artificial intelligence (Artificial Intelligence Act)*, *Official Journal of the European Union*, available at: https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=CELEX:32024R1689, accessed 12 October 2026.

Government of Canada (2000), Personal Information Protection and Electronic Documents Act (S.C. 2000, c. 5), available at: https://laws-lois.justice.gc.ca/eng/acts/p-8.6/, accessed 12 October 2026.

Liu Q. and Khalil M. (2023), "Understanding privacy and data protection issues in learning analytics using a systematic review", *British Journal of Educational Technology*, Vol. 54, Issue 6, pp. 1338-1356, available at: https://doi.org/10.1111/bjet.13388.

U.S. Department of Education (1974), *Family Educational Rights and Privacy Act (FERPA)*, 20 U.S.C. § 1232g; 34 CFR Part 99, available at: https://www2.ed.gov/policy/gen/guid/fpco/ferpa/index.html, accessed 12 October 2026.

Competences and reflection questions

2.1 I can identify what types of data are collected by AI applications, which might be misused

Descriptor: *How confidently can I identify what types of data (e.g., voice recordings, writing samples, metadata) are collected when using AI applications in language education?*

REFLECTION QUESTIONS

- What routines do I have (or can I put in place) for checking whether AI tools require learners to sign in, and (if so) what data they collect?
- How do I decide whether data collection by AI applications is pedagogically needed and proportionate for language learning purposes?
- What procedures do I have (or can I put in place) for deleting user data or preventing it from being used for purposes beyond the classroom?
- How might I adapt the use of AI tools to protect learners' rights and identities?

2.2 I can raise awareness about the data AI applications gather and its possible uses and misuses

Descriptor: *How successfully can I raise awareness of learners, colleagues and parents about risks to data privacy?*

REFLECTION QUESTIONS

- Are there learners in my classroom whose personal data could put them at risk if mishandled?
- How might I explain data privacy risks to learners or colleagues in accessible and practical terms?
- How might I involve learners in reviewing the privacy settings of a tool we use together?
- What should I discuss with my class or team about the implications of learner profiling?